



CHAPTER clxxxv.

An Act to transfer to and vest in the mayor aldermen and burgesses of the borough of Boston the undertaking of the Boston Waterworks Company to authorise the said mayor aldermen and burgesses to supply water in and in the neighbourhood of the borough to make further provisions with respect to the finance of the borough and for other purposes.

A.D. 1930.

[1st August 1930.]

WHEREAS the borough of Boston in the county of Lincoln (hereinafter called "the borough") is a municipal borough under the local government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation") acting by the council :

And whereas the Corporation are the urban sanitary authority for the district comprising the borough :

And whereas the Boston Waterworks Company (hereinafter called "the company") under and by virtue of the Boston Waterworks Act 1846 have constructed waterworks and are supplying water within the limits of that Act which comprise the borough and the adjoining parishes of Skirbeck and Skirbeck Quarter :

And whereas the company are also supplying water within certain other parishes in the neighbourhood of the borough :

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

— And whereas by the said Act it was enacted that the capital of the company should be thirty thousand pounds and that the company might subject as therein provided borrow on mortgage or bond any sums of money not exceeding in the whole the sum of ten thousand pounds :

And whereas the company have raised the whole of the capital authorised by the said Act and such capital consists of twelve hundred shares of twenty-five pounds each bearing a maximum dividend of ten per centum per annum unless a larger dividend shall at any time be necessary to make up the deficiency of any previous dividend which shall have fallen short of the said yearly rate :

And whereas it is expedient that the water supply of the borough should be under the control of the Corporation and that the undertaking of the company should be transferred to and vested in the Corporation upon the terms provided by this Act and that the powers contained in this Act in relation to the supply of water should be conferred on the Corporation :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Boston Corporation Act 1930.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

2. This Act is divided into Parts as follows :— A.D. 1930.

Part I.—Preliminary.

Part II.—Transfer of undertaking.

Part III.—Waterworks and lands.

Part IV.—Supply of water.

Part V.—Financial and miscellaneous.

Division of
Act into
Parts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act and for the purposes of such incorporated Acts this Act shall be deemed to be the special Act within the meaning of any such Act and “the promoters of the undertaking” or “the undertakers” where used in those Acts shall mean the Corporation (that is to say) :—

Incorpora-
tion of
Acts.

(1) The Lands Clauses Acts except—

Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands):

(2) The Waterworks Clauses Act 1847 except—

(a) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(b) Sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit);

(c) Section 83 (with respect to the yearly receipt and expenditure of the undertakers):

Provided that section 35 of the Act in its application to the Corporation shall be read and have effect as if the words “one eighth part” were substituted therein for the words “one tenth part:”

(3) The Waterworks Clauses Act 1863.

4. Subject to the provisions of this Act and unless the subject or context otherwise requires the several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public

Interpre-
tation.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. Health Acts 1875 to 1925 meanings are assigned shall
— in this Act have the same respective meanings And
in this Act—

“The borough” means the borough of Boston;

“The council” means the town council of the
borough;

“The Corporation” means the mayor aldermen
and burgesses of the borough acting by the
council;

“The town clerk” means the town clerk of
the borough and includes any person duly
appointed by the Corporation to discharge
temporarily the duties of such officer;

“The general rate fund” and “the general rate”
mean respectively the general rate fund and
the general rate of the borough;

“The company” means the Boston Waterworks
Company;

“The Act of 1846” means the Boston Waterworks
Act 1846;

“The undertaking of the company” includes—

(a) All the lands buildings waterworks
machinery mains pipes plant and apparatus
deeds agreements contracts plans specifica-
tions engineers' opinions and reports books
vouchers letters and other documents stores
and other property of the company on the
day of transfer;

(b) All bank balances and cash and other
balances (including consumers' deposits) in
the hands of the company or in the hands
of their bankers agents or servants on the
day of transfer and investments and securities
for money;

(c) All rates rents book debts and other
sums of money which on the day of transfer
are due or payable to or are accruing due
to the company;

(d) All rights powers and privileges vested
in or had or enjoyed by the company at
the day of transfer;

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(e) All other the real and personal property assets and effects of the company of whatever nature on the day of transfer; but does not include— A.D. 1930.
—

(i) the directors' minute books and other books and papers relating exclusively to the shareholders in and the constitution of the company which may be necessary to be retained for the purpose of winding up the company;

(ii) such a sum of money as may be required to enable the company to declare and pay a dividend at the rate of ten per centum per annum on their shares in respect of the portion of the period from the passing of this Act to the day of transfer for which a dividend shall not have been paid by the company;

“The scheduled agreement” means the agreement dated the twenty-third day of June one thousand nine hundred and thirty and made between the Corporation of the one part and the company of the other part a copy whereof is set forth in the Fourth Schedule to this Act;

“The day of transfer” means the first day of April nineteen hundred and thirty-one;

“The water undertaking” means the water undertaking of the Corporation as for the time being authorised;

“The water limits” means the limits within which the Corporation are for the time being authorised to supply water;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

“Statutory borrowing power” means any power whether or not coupled with a duty of—

(a) borrowing or continuing on loan or re-borrowing money; or

(b) redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money

for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

Commence-
ment of
Parts III
and IV of
Act.

5. The Corporation shall not exercise the powers conferred upon them by Part III (Waterworks and lands) and Part IV (Supply of water) of this Act until the day of transfer.

PART II.

TRANSFER OF UNDERTAKING.

Confirma-
tion of
agreement
and trans-
fer of under-
taking of
company.

6.—(1) The scheduled agreement is hereby confirmed and made binding upon the parties thereto and shall be carried into effect accordingly.

(2) On the day of transfer or on such later date as the price or consideration referred to in the next succeeding section of this Act is paid the undertaking of the company shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation subject to the provisions of this Act.

Considera-
tion.

7. The price or consideration to be paid by the Corporation to the company shall be the sum of seventy

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

thousand pounds which shall be paid in cash on the day A.D. 1930.
of transfer.

8. If the sum payable to the company under the provisions of the section of this Act of which the marginal note is "Consideration" is not paid on the day of transfer the Corporation shall pay to the company interest at the rate of five per centum per annum on the sum unpaid from the day of transfer to the actual date of payment.

Interest on
unpaid
purchase
money.

9. The receipt in writing of three directors of the company for any money paid to the company shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Corporation are unable to obtain any such receipt they may pay the money due to the company into or with the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the company.

Receipt for
considera-
tion.

10. The production of a King's Printer's or Royal Assent copy of this Act duly stamped together with a receipt for the price or consideration purporting to be signed by three directors of the company or by the cashier of the Bank of England shall (unless it be proved that the price or consideration has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the undertaking of the company.

Evidence of
transfer.

11. The Corporation shall pay and discharge (so far as the same shall not have been previously discharged by the company) the debts outgoings and liabilities (other than debts outgoings and liabilities in respect of any contract agreement liability or other obligation made or entered into in contravention of the provisions of the section of this Act of which the marginal note is "Exercise of powers until transfer") properly chargeable against the company and shall indemnify the company

Corporation
to pay
debts and
to be
entitled to
rents after
transfer.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. from all claims in respect thereof and shall be entitled as
— from the day of transfer to all rates rents profits and
other receipts receivable in respect of the undertaking of
the company.

Exercise of
powers
until
transfer.

12.—(1) Until the day of transfer the company shall maintain and carry on the undertaking of the company as heretofore in the ordinary course of business maintaining normal quantities of consumable stores but the company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any new contract agreement liability or other obligation in respect thereof which shall extend beyond the day of transfer nor vary any of the rates rents or charges which were being demanded and taken by the company on the seventeenth day of December nineteen hundred and twenty-nine.

(2) Until the day of transfer the company shall in carrying on the undertaking of the company in accordance with subsection (1) of this section maintain the assets of the undertaking in a satisfactory condition but shall not incur any expenditure of a capital or unusual nature nor shall they raise any money by borrowing or by the creation and issue of debenture stock nor increase the salaries and remuneration of the existing staff nor subject to the provisions of subsection (1) of this section dispose of any of the assets of the undertaking of the company without the previous consent of the Corporation under the hand of the town clerk.

Partial
repeal of
the Act of
1846.

13. As from the day of transfer the Act of 1846 shall subject to the provisions of this Act be and the same is hereby repealed except so far as may be necessary to give effect to the provisions of the section of this Act of which the marginal note is "Distribution of consideration and dissolution of the company" and except the provisions of that Act which are set out in the First Schedule to this Act all which provisions shall continue and have effect as if they were re-enacted in this Act with any necessary modifications and as if references to the Corporation were substituted therein for references to the company.

Savings.

14. Notwithstanding the provisions of the section of this Act of which the marginal note is "Partial repeal of the Act of 1846" and notwithstanding the transfer to the

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

Corporation of the undertaking of the company the following provisions shall have effect (that is to say):— A.D. 1930.

- (1) If on the day of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the company in relation to any property right privilege debt liability or obligation transferred to the Corporation the same shall not abate or be discontinued or in anywise prejudicially affected by reason of such transfer but the same (save so far as it relates to any contract agreement liability or other obligation made or entered into in contravention of the provisions of the section of this Act of which the marginal note is "Exercise of powers until transfer") may be continued prosecuted and enforced by against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by against or in favour of the company if this Act had not passed :
- (2) All rates rents and charges in connection with the undertaking of the company which have been lawfully made charged or imposed and which on the day of transfer are due or if this Act had not been passed would have accrued due shall continue in force and be due and payable and may be collected recovered or enforced by the Corporation as and when the same might have been payable to and collected recovered and enforced by the company if this Act had not been passed :
- (3) All agreements conveyances contracts deeds and other instruments entered into or made with or by the company and in force on the day of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the company the Corporation had been a party thereto Provided that no agreement conveyance contract deed or other instrument shall be binding on or of any force or effect against or in favour of the Corporation if entered into or made in contravention of the provisions of the section

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

of this Act of which the marginal note is
“ Exercise of powers until transfer ” :

- (4) All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Existing
officers and
servants.

15.—(1) Every officer and servant (other than the directors and auditors of the company) in the regular employment of the company in connection with the undertaking of the company immediately before the day of transfer (in this section referred to as an “ existing officer ” and an “ existing servant ”) shall as from the day of transfer become an officer or servant of the Corporation and shall hold his office or situation by the same tenure and upon like terms and conditions under the Corporation as he would have held the same under the company if the transfer of the undertaking of the company had not taken place and while performing the same duties shall receive not less salaries wages or pay than he would have been entitled to from the company if the transfer of the undertaking of the company had not taken place.

(2) Every existing officer and existing servant shall perform such duties in connection with the water undertaking as they may be required to perform by the Corporation.

(3) The Corporation may abolish the office or situation of any existing officer or existing servant which they deem unnecessary and any existing officer or existing servant required at any time within a period of five years after the day of transfer to perform duties such as are not analogous or which are an unreasonable addition to those which as an officer or servant of the company in connection with the undertaking of the company he was required to perform may relinquish his office or service.

(4) Every existing officer or existing servant whose office is so abolished or who so relinquishes his office or service as aforesaid or who otherwise suffers any direct pecuniary loss in consequence of the undertaking of the company being transferred to the Corporation shall be entitled to be paid by the Corporation compensation for such pecuniary loss.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(5) If within a period of five years after the day of A.D. 1930.
transfer the services of any existing officer or existing
servant are dispensed with by the Corporation because his
services are not required and not on account of misconduct
or incapacity or the salary of any existing officer or
existing servant is reduced on the ground that his duties
have been diminished in consequence of the undertaking
of the company being transferred to the Corporation the
officer or servant shall be deemed to have suffered
direct pecuniary loss in consequence of the transfer of
the undertaking of the company to the Corporation.

(6) In determining the compensation payable to
any person who becomes entitled to compensation in
pursuance of this Act the provisions of the Eighth
Schedule to the Local Government Act 1929 with the
necessary modifications shall apply.

(7) Any compensation payable under this Act to
any existing officer or existing servant shall be paid out
of the general rate fund and the provisions of the said
schedule shall apply subject to the following and any
other necessary modifications :—

(a) any reference in that schedule to an officer shall
be construed as a reference to an existing officer
or an existing servant as the case may be as
defined in this section ;

(b) any reference in that schedule to the council
shall be construed as a reference to the
Corporation ;

(c) any reference in that schedule to the appointed
day shall be construed as a reference to the day
of transfer as defined in this Act.

16. The sum payable by the Corporation to the
company under this Act shall be applied or distributed
in accordance with the provisions contained in the
Second Schedule to this Act and upon the provisions
contained in the said schedule being carried into effect
the company shall ipso facto be dissolved.

Distribution
of consider-
ation and
dissolution
of the com-
pany.

PART III.

WATERWORKS AND LANDS.

17. Subject to the provisions of this Act the
Corporation may maintain and from time to time repair
alter improve enlarge extend and renew or discontinue

Power to
maintain
&c. trans-
ferred
works.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — the waterworks mains pipes and plant to be transferred to and vested in them under the provisions of this Act and may use and employ the same for the purposes of the water undertaking and for the supply of water within the water limits or under the provisions of this Act and the Corporation shall in respect of those works plant mains and pipes and the maintenance and future use regulation and enlargement thereof have the powers and be subject to the provisions of this Act and the Acts incorporated wholly or in part with this Act and the same shall be deemed to and shall be and form part of the water undertaking.

Subsidiary works.

18. The Corporation may also upon the lands for the time being belonging to them for the purposes of the water undertaking or over which they may obtain easements make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Limiting powers of Corporation to abstract water.

19.—(1) The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

(2) For the purposes of this section the existing waterworks of the company shall be deemed to be works authorised by this Act and the lands upon which such existing waterworks are constructed shall be deemed to be specified in this Act.

Temporary discharge of water into streams &c.

20.—(1) For the purpose of constructing altering repairing emptying cleansing or examining any reservoir aqueduct line of pipes or other work for the time being belonging to them the Corporation may cause the water in any such work to be temporarily discharged into any available surface-water sewer stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

of the exercise of such power the amount of such compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889. A.D. 1930.

(3) The powers of this section shall not be exercised so as to damage the railways or works of any railway company.

21.—(1) The Corporation shall have and may exercise the powers which a local authority would have under section 54 (Power of carrying mains) of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the water limits shall be deemed to be the district. Further powers in relation to water mains.

(2) The Corporation shall not exercise the powers conferred by this section on any lands or property belonging to a railway company without the consent of the company to which such lands or property belongs which consent shall not be unreasonably withheld.

22.—(1) Subject to the provisions of the Water-works Clauses Act 1847 the Corporation may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and other apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily stop up break up and interfere with public and private streets roads lanes footways courts passages tramways sewers pipes wires and apparatus. Meters &c. to measure water or detect waste.

(2) The Corporation shall not under the powers of this section interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

(3) The Corporation shall not under the powers of this section enter upon break up or interfere with the railway or works or any electric lines wires or apparatus belonging to a railway company or any street belonging to such company without the consent of that company which consent shall not be unreasonably withheld nor shall the Corporation unreasonably obstruct or interfere

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. with the access to or exit from any station or depot of that company.

Powers for protection of waters and waterworks.

23.—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Corporation may by agreement purchase take on lease and acquire any lands in or over which any waters which the Corporation are for the time being authorised to collect impound take use divert or appropriate arise or flow and may hold such lands so long as they shall deem it necessary or expedient for those purposes. Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking.

(2) The Corporation may in and upon any lands so acquired by them construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within any area in or through which any waters which may be taken by the Corporation arise or flow subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Corporation shall not exercise the powers conferred by this section on any lands or property belonging to a railway company without the consent of the company to which such lands or property belongs which consent shall not be unreasonably withheld.

Power to agree as to drainage of lands &c.

24. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of their waterworks with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

diverted collected and appropriated by the Corporation flowing to upon or from such lands directly or derivatively into such works. A.D. 1930.

25. The Corporation in addition to any land which they are otherwise by this Act authorised to acquire may from time to time by agreement purchase take on lease or otherwise acquire and hold for the purposes of the water undertaking any lands (not exceeding in the whole ten acres) or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Corporation may deem necessary for those purposes and the Corporation on any lands acquired under this section may execute for the purposes of or in connection with the water undertaking any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847 Provided that the Corporation shall not create or permit a nuisance on such lands and shall not erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking. Power to take additional lands by agreement.

26. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of the water undertaking and may erect maintain and let dwelling-houses for and to such persons upon any lands for the time being belonging to the Corporation and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation. Dwelling-houses for persons in Corporation's employ.

27.—(1) Notwithstanding anything in any other Act or Acts to the contrary the Corporation may retain hold and use for such time and for such purposes as they think fit any lands for the time being belonging to them and may from time to time sell lease exchange or otherwise dispose of the same in such manner for such consideration and on such terms and conditions as they think fit and may execute and do any deed act or thing proper for effectuating any sale lease exchange or disposition and on any such sale lease exchange or disposition may reserve to themselves all or any part of the Power to retain sell &c. lands.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — water rights or other easements belonging thereto and may make the sale lease exchange or disposition subject to such reservations accordingly and may also make any such sale lease exchange or disposition subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit :

Provided that the Corporation shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister of Health is necessary or has been obtained.

(2) Provided also that nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease or other disposition of any lands of the Corporation in any case in which such consent would be required if this Act had not been passed.

(3) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds of
sale of
surplus
lands.

28.—(1) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same in

or towards the extinguishment of any loan raised by them under the powers of this Act or under any other powers and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health. A.D. 1930.

(2) Any capital moneys received by the Corporation on the re-sale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister of Health.

PART IV.

SUPPLY OF WATER.

29. The limits of this Act for the supply of water by the Corporation shall be— Limits of supply.

- (a) The borough;
 - (b) The parishes of Skirbeck and Skirbeck Quarter in the rural district of Boston;
 - (c) The parish of Revesby in the rural district of Horncastle;
 - (d) The parishes of Carrington Frithville and Sibsey in the rural district of Sibsey; and
 - (e) The parish of West Fen in the rural district of Spilsby;
- all in the county of Lincoln.

30. The water supplied by the Corporation need not at any time be delivered at a pressure greater than that afforded by gravitation from the service reservoir or tank from which the supply is given. Limits of pressure.

31.—(1) A rural district council any part of whose district is within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any main pipe or works for the supply of water within any part of such district which is within the water limits. Guarantees by district councils.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise any money which may become payable to the Corporation under this section in like manner as money may be raised under the provisions of any such general Act.

(3) Subject to the provisions of the Local Government Act 1929 where such money is raised by means of a rate such rate shall be or shall be deemed to be a special rate.

Rates for
supply of
water
Domestic
purposes.

32.—(1) The Corporation shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at such rates as the Corporation may from time to time determine not exceeding ten per centum per annum on the net annual value of the house or part of a house supplied. Provided that the Corporation shall not be required to afford a supply of water for domestic purposes to any premises at a less rate than three pence per week.

(2) The net annual value of any such house or part of a house shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues. Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the Corporation may in the case of any premises to which they furnish a supply of water charge for every watercloset beyond the first (for which no additional charge shall be made) a sum not exceeding ten shillings per annum and for every fixed bath capable of containing not more than fifty gallons and for every bath capable of

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

containing more than twenty gallons and not more than fifty gallons a sum not exceeding ten shillings per annum and for every bath capable of containing more than fifty gallons such sum as the Corporation may think fit. A.D. 1930.

(4) When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty-five shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first.

(5) Any sums charged under subsections (3) and (4) of this section shall be recoverable at the like dates and in the same manner as other water rates or charges leviable by the Corporation under this section can be recovered.

(6) Where a person who takes a supply of water for domestic purposes from the Corporation desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation shall be entitled to require that all water so used shall—

- (a) be taken by meter and paid for accordingly and in that event the minimum quarterly charge for the water so used shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the Corporation.

33.—(1) Where the rateable value of a house supplied with water does not exceed twelve pounds or the house is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may if the occupier be not himself liable therefor under any lease or agreement be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due

Rates payable by owners of small houses.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — from him subsequent to the service upon him of a notice to pay the rate.

(2) The provisions of section 73 (Tenants under existing leases to repay the owner) of the Waterworks Clauses Act 1847 shall *mutatis mutandis* extend and apply to any payments made under the provisions of this section by the owner of any house and as if such first-mentioned provisions applied in the case of any lease or agreement whether made before or after the passing of this Act.

Supply by
measure.

34. The Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
supply by
measure.

35. The price to be charged for a supply of water by measure (other than a supply for the use of vessels) shall not exceed one shilling and sixpence per thousand gallons. Provided that the Corporation shall be entitled to charge a minimum sum of one pound in any quarter of the year for water supplied by measure otherwise than under subsection (6) of the section of this Act of which the marginal note is "Rates for supply of water Domestic purposes."

Supply to
houses
partly
used for
trade &c.

36.—(1) The Corporation shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof a part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any workhouse public institution hospital or asylum (whether public or private) sanatorium school club hotel assembly hall restaurant public-house or inn; or
- (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(2) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by measure but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the rates authorised by this Act. A.D. 1930.

37.—(1) Notwithstanding anything in this or any other Act relating to the Corporation contained a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure. Special terms for supplies to caravans shacks &c.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by whom the costs of the proceedings before them shall be paid and the decision of the justices shall be final and binding on all parties.

38. The Minister of Health may if he thinks fit from time to time on the application of the Corporation or of a local authority (other than the Corporation) having jurisdiction within the water limits by order vary either by way of increase or decrease the rates and charges for the supply of water which the Corporation are by this Act authorised to charge : Revision of rates.

Provided that the rates and charges prescribed in any such order shall be of such amounts as in the opinion of the Minister will provide a reasonable sum as a contri-

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930: bution towards a reserve fund so long as such fund does
not amount to the maximum prescribed by the section
of this Act of which the marginal note is "Reserve fund
for water undertaking."

Water rate
&c. may be
collected
with
general rate.

39.—(1) Any water rate payable to the Corporation
may be collected together with the general rate and the
same books may be used for the said rates.

(2) The general rate and the demand note and any
other necessary documents to be used for the purposes
of or in connection with the general rate or water rates
shall be in such form as the Minister may from time to
time prescribe.

(3) The Corporation may demand water rates and
charges both within and beyond the borough by half-
yearly instalments in advance on the first day of April
and the first day of October in each year but so that the
same shall not be recoverable until the expiration of two
months from the said first day of April and first day of
October respectively.

(4) (a) The Corporation may from time to time if
they think fit make an allowance by way of discount not
exceeding five per centum on the amount due in respect
of any water rate or charge or any instalment thereof
from every person who pays the same within such time
after demand of the rate or any instalment thereof as the
case may be as the Corporation may prescribe.

(b) Provided that the same rate of discount shall be
allowed in similar circumstances to every person from
whom such water rate or charge or any instalment thereof
shall be demanded.

(c) Notice of any rate of discount allowed under this
enactment shall be endorsed on every demand note for
water rates and charges.

Separate
communi-
cation pipes
may be
required.

40.—(1) The Corporation shall not be bound to
supply more than one house by means of the same
communication pipe and they may if they think fit
require that a separate pipe be laid from the main pipe
into each house supplied by them with water.

(2) If the owner of any house supplied with water
by the Corporation when so required in pursuance of the
preceding subsection fails within a period of one month
after the receipt of such requirement to provide a separate
pipe from the main pipe into such house the Corporation

may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt. A.D. 1930.
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41. Where several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Corporation. Mainten-
ance of
common
pipe.

42. Notwithstanding anything contained in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipes therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main (subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes) any work and supply all fittings and materials which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt. Corporation
to connect
communi-
cation pipes
with mains.

43. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given personally at the office of the Corporation. Notice of
discon-
tinuance.

44.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this Act referred to as "water Byelaws
for pre-
venting
waste &c.

A.D. 1930. fittings ") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) The Corporation shall on or before the date upon which notice of any such byelaws is first given in any local newspaper in pursuance of section 184 (Confirmation of byelaws) of the Public Health Act 1875 send a copy of the byelaws to the local authority for every district in which the byelaws are intended to be in force.

(4) In so far as any byelaws made by the Corporation prescribe the size nature materials workmanship and strength of water fittings the same shall not apply to water fittings used on any premises belonging to a railway company (other than premises to which the Corporation are bound under the Waterworks Clauses Act 1847 to afford a supply of water for domestic use) so long as such fittings do not cause waste undue consumption misuse or contamination of water which is supplied by the Corporation.

(5) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter the premises of or occupied by such person and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation as the water rates in respect of the premises are recoverable.

Power to
Corporation
to repair
communi-
cation pipes.

45. If in the opinion of the Corporation any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain it shall be lawful for the Corporation to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

pipe shall have been found the expenses incurred by the Corporation for the purpose of ascertaining the cause of injury or defect and executing the repairs (including the expenses of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable. Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

A.D. 1930.
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46. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to
sell meters.

47. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
Corporation
of connect-
ing or dis-
connecting
meters.

48.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate rent or charge is charged and sought to be recovered by the Corporation. Provided always that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Register of
meters to
be prima
facie
evidence.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 Geo. 5.]
Act, 1930.

A.D. 1930.

(2) In the event of any meter used by a consumer of water being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Corporation.

Injuring
meters &c.

49.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a fine not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter or other instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings. A.D. 1930.

50. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. Penalty for closing valves and apparatus.

51. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purposes of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly. Penalty for opening valves &c.

52. In addition to the powers conferred by section 57 (Power to surveyor employed by undertakers to enter houses to inspect &c.) of the Waterworks Clauses Act 1847 any duly authorised officer of the Corporation may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds. Extension of power to inspect premises.

A.D. 1930.

Power to
supply
fittings.

53.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

(3) All fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Corporation. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) Provided also as follows :—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

(b) Every sum charged by the Corporation in respect of the provision of such fittings or the fixing repairing or removal thereof shall be clearly stated in every demand note delivered by the Corporation to the consumer;

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for that year. A.D. 1930.

54. The Corporation by their agents or workmen after forty-eight hours' notice in writing under the hand of the town clerk to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Corporation is laid or fixed and through or in which the supply of water is from any cause other than the default of the Corporation discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. Power to remove meters and fittings.

55.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. Opening of ground by person liable to maintain pipes &c.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

56. The Corporation may enter into and carry into effect agreements with any authority water board company or person for the supply of water beyond the water limits to any such authority board company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any authority water board company or person supplying Contracts for supply-ing water in bulk.

A.D. 1930. water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

Purchase of water in bulk. **57.** The Corporation may enter into and carry into effect agreements with any local authority company or person supplying water under parliamentary authority for the purchase of water in bulk by the Corporation for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Corporation for the purposes of the water undertaking.

PART V.

FINANCIAL AND MISCELLANEOUS.

Power to borrow. **58.**—(1) The Corporation may from time to time borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column of the said table (namely) :—

1.	2.	3.
(a) For the purchase of the undertaking of the company (including any moneys payable by the Corporation on capital account under the section of this Act of which the marginal note is “Corporation to pay debts and to be entitled to rents after transfer”) and for defraying the costs and expenses incident to such purchase and to the transfer of the said undertaking to the Corporation (other than the costs of this Act) and for the payment of any sums to any officer or servant by way of compensation under this Act.	The sum requisite.	Fifty years from the day of transfer.
(b) For working capital for the water undertaking.	£5,000	Ten years from the date or dates of borrowing.
(c) For the payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act. A.D. 1930.
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(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister of Health.

(3) In order to secure the repayment of the money borrowed or re-borrowed under this Act and the payment of the interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

59. The Corporation may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) and section 16 (Annual return as to sinking fund) of that Act. Mode of raising money.

60. Subject to the provisions of the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act :— Provisions of Public Health Act 1875 as to mortgages to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

61. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or Evidence of transfer or transmission of securities.

A.D. 1930. the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Mode of
payment
off of
money
borrowed.

62. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months of the date of borrowing.

Sinking
fund.

63.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) such sinking fund shall be formed or maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

the Corporation being at liberty from time to time to vary and transpose such investments. A.D. 1930.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — cause the sinking fund to be sufficient for that purpose and if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as that Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister of Health shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

(12) All moneys which at the date of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Use of
moneys
forming

64. Notwithstanding anything in any enactment the Corporation may use for the purpose of any

statutory borrowing power exerciseable by them any A.D. 1930.
moneys forming part but not for the time being
required for the purposes of any fund accumulated part of
for the redemption of debt or as a reserve renewals sinking and
depreciation or other similar fund (in this section other funds.
referred to as "the lending fund") subject to the
following conditions :—

- (1) The money so used shall be repaid to the lending fund within the period and by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable. Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :
- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provision of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

A.D. 1930.

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Protection
of lender
from
inquiry.

65. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation
not to
regard
trusts.

66. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of
receiver.

67.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

68.—(1) The Corporation shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1930.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

69.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or in any Order as from the thirty-first day of March nineteen hundred and thirty-one or as from any succeeding thirty-first day of March the Corporation may if they think fit establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

Consoli-
dated loans
fund.

- (a) all moneys borrowed by the Corporation whether by the issue of stock or other security together with any moneys borrowed without security in connection with the exercise of statutory borrowing powers;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment

A.D. 1930.

attaching to their several borrowing powers or otherwise provided for the repayment of debt; and

- (d) a sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock mortgages or other securities issued in exercise of the statutory borrowing powers of the Corporation and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received (except of such moneys as have been borrowed from the Public Works Loan Commissioners) and of all sums provided by the Corporation as aforesaid before the thirty-first day of March as from which the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund (subject as hereinafter provided) shall be used or applied by the Corporation—

- (a) in the exercise of any duly authorised borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation;
- (b) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation; or
- (c) in the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of the statutory borrowing powers of the Corporation and remaining outstanding:

Provided that any moneys of the consolidated loans fund pending use or application as aforesaid may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investment thereof shall not except with the consent of the Minister of Health be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently upon all the revenues of the Corporation

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

and shall rank equally one with the other without any priority whatsoever. A.D. 1930.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

70. The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund or a redemption fund for the purpose of repaying all moneys borrowed by the Corporation in the exercise of any statutory borrowing power as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875. Application of section 79 of Public Health Act 1925.

71.—(1) Notwithstanding anything contained in any other Act relating to the Corporation where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Third Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

A.D. 1930.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods and by the means within and by which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the town clerk a register of the mortgages granted under this section and within one month after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Third Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the town clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

A.D. 1930.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

72.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to
Minister of
Health
with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

Application of money borrowed. **73.** All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for working capital) to which capital is properly applicable.

Interest on mortgages &c. held jointly. **74.** Where more persons than one are registered as joint holders of any mortgage or other security of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation by any other of them.

Receipt in case of persons not sui juris. **75.** If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Application of revenue and payment of expenses of water undertaking. **76.**—(1) All money received by the Corporation on account of the revenue of the water undertaking shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

(2) The Corporation may (if they think fit) apply money received by them on account of the revenue of the water undertaking in the construction renewal extension and improvement of the works and conveniences for the purposes of that undertaking.

Separate accounts to be kept. **77.**—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation referred to in the last preceding section of this Act (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended

in respect of each of the following purposes (that is A.D. 1930.
to say) :—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

78.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the water undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same subject to the provisions of the section of this Act of which the marginal note is "Use of moneys forming part of sinking and other funds" in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-tenth of the aggregate capital expenditure for the time being upon the water undertaking.

Reserve
fund for
water
under-
taking.

(2) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — from the water undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the water undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of the water undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the said reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) The income of any such reserve fund shall be treated as part of the revenue of the water undertaking.

Date of
operation
of certain
sections.

79. The sections of this Act of which the marginal notes are "Application of revenue and payment of expenses of water undertaking" "Separate accounts to be kept" and "Reserve fund for water undertaking" shall not come into operation until the first day of April nineteen hundred and thirty-one.

Expenses
of execu-
tion of Act.

80. Any expenses incurred by the Corporation in carrying into execution the provisions of this Act except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for shall be paid out of the general rate fund.

Authentica-
tion and
service of
notices &c.

81.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

registered office or at their principal office or place of business. A.D. 1930.

82. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

83. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act. General provisions as to bye-laws.

84. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted. Damages and charges to be settled by court.

85. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

86. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant Several sums in one summons.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Informa-
tions by
whom to be
laid.

87. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Recovery of
penalties
&c.

88. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Penalties to
be paid
over to
treasurer.

89. All penalties recovered on the prosecution of the Corporation or any officer of the Corporation on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer of the borough and be carried by him to the credit of the general rate fund or to such other fund as the Corporation shall direct.

Saving for
indict-
ments &c.

90. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Application of
section 265 of
Public Health
Act 1875.

91. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Judges not
disqualified.

92. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Inquiries by
Minister of
Health.

93.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister of Health under the Public Health Act 1875. A.D. 1930.
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(2) The Corporation shall pay to the Minister of Health any expenses incurred by him in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister of Health not exceeding five guineas a day for the services of such inspector.

94. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

A.D. 1930. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

SECTIONS OF THE ACT OF 1846 SAVED FROM REPEAL.

Company to
maintain
Works for
the accom-
modation
of the
Owners &c.
of Sir John
Wyldbore
Smith's
Estate.

XX. And whereas it is proposed to take the Water for the Purposes of the said Company from a certain Brook or Stream called Miningsby Beck, in the Parish of Miningsby, in the Parts of Lindsey aforesaid, and to construct a Reservoir or Reservoirs for such Water on an Estate in Miningsby aforesaid belonging to Sir John Wyldbore Smith Baronet; and it is reasonable and proper that the said Water should be taken, and the said Reservoir or Reservoirs and Works constructed with as little Detriment as possible to the said Estate; be it therefore enacted, That the said Company shall, at their own Costs and Charges, make and at all Times maintain the following Works for the Accommodation of the Owners and Occupiers for the Time being of the said Estate of the said Sir John Wyldbore Smith (that is to say) :—

Such convenient Gates, Bridges, Tunnels, Ways, and Passages at each End and by the Side of the said Reservoir or Reservoirs as shall be necessary for the Purpose of making good any interruptions caused by the Reservoir or Reservoirs to the Use of the Lands adjacent thereto on each Side thereof;

Also sufficient Posts, Rails, and other Fences for separating the Land taken for the Reservoir or Reservoirs from the adjoining Lands not taken, and protecting the Cattle of the Owners or Occupiers of the adjoining Lands from straying thereout;

Also all necessary Culverts, Pipes, Drains, Watercourses, and other Passages, either through or by the Side of the said Reservoir or Reservoirs, and of such dimensions as will be sufficient at all Times to convey the Water as freely from the Lands lying near or adjacent to the said Reservoir or Reservoirs, or draining by the said Brook, as before the making of the said Reservoir or Reservoirs.

Differences
as to the
said Works
to be
settled by
Justices.

XXI. And be it enacted, That if any Difference shall arise respecting the Kind or Number of any such Accommodation Works to be made, or the Dimensions or Sufficiency thereof, or at any Time or Times hereafter respecting the maintaining thereof, the same shall be determined by Two Justices, and such

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

Justices shall also appoint the Time within which such Accommodation Works shall be commenced and executed by the Company. A.D. 1930.
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XXII. And be it enacted, That if for Fourteen Days next after the Time appointed by such Justices for the Commencement of any such Accommodation Works the Company shall fail to commence such Works, or, having commenced such Works within the Time appointed, or within such Fourteen Days as aforesaid, the said Company shall fail to proceed diligently to execute the same in a sufficient Manner, it shall be lawful for the Party aggrieved by such Failure himself to execute such Works or Repairs; and the reasonable Expences thereof shall, on demand, be repaid by the Company to the Party by whom the same shall so have been executed; and if there be any Dispute about the Amount or Nature of such Expences the same shall be settled by Two Justices.

If Company fail to commence such Works, Owners &c. may execute the same, and charge the Company with the Expence.

XXIII. And be it enacted, That the Land which shall be taken from the said Estate of the said Sir John Wyldbore Smith, for the Purpose of the said Reservoir and other Works, shall be used for such Purpose only; and no Dwelling House, Warehouse, Building or other Erection of any Kind, except such as may be needful or proper for the Company in making, conducting, managing, and carrying on the Works by this Act Authorized, shall be constructed thereon by the said Company; nor shall any Soil, Earth, Stone, Bricks, Rubbish, Gravel, Sand, or other Material be permanently left on any Part of the said Land so as to Occasion a Nuisance to the said Estate of the said Sir John Wyldbore Smith, or the Owners or Occupiers thereof for the Time being.

Land taken from Sir J. W. Smith's Estate shall only be used for the Purposes of Company.

No Soil, &c. shall be left permanently on the said Land.

XXIV. And be it enacted, That the Company shall not give or grant any Right to fowl or fish in the said Reservoir or Reservoirs to any Person other than the Owner or Owners or Occupiers for the Time being of the said Estate of the said Sir John Wyldbore Smith.

As to Right to fowl and fish in the Reservoir.

XXV. And be it enacted, That if any Land which may be taken by the said Company from the said Estate of the said Sir John Wyldbore Smith for the Purposes aforesaid, shall, by reason of the Discontinuance of the Works hereby authorized, or from any other Cause, not be required for the same Purposes, then such shall be disposed of in the Manner directed by the Lands Clauses Consolidation Act, 1845, with respect to the Sale of superfluous Land.

Land purchased, and not required by the Company, shall be disposed of pursuant to 8 & 9 Vict. c. 18.

XXVI. And be it enacted, That, subject to the Restrictions and Provisions in this Act and in the said recited Acts contained, it shall be lawful for the Company from Time to Time, for the Purposes of the Company, to divert or alter the Course of and take and impound the Water from that Part of the said Brook or Stream called Miningsby Beck which lies in and under the

Power to Company to take Water from Miningsby Beck.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. Land to be taken for the said Reservoir or Reservoirs and Works mentioned and described on the said Plans deposited as hereinbefore mentioned, and also to take the Water from such Springs as may be found in and under or on the Land to be taken in constructing the Works by this Act authorized to be made.

Penalty for diverting the Water from its proper Course.

XXVII. And be it enacted, That, after the Springs and Supplies of Water hereby authorized to be taken or appropriated by the said Company shall have been so taken or appropriated it shall not be lawful for any Person, other than the said Company, to divert, alter, or appropriate any of the Waters now supplying or flowing into or from the said Beck called Miningsby Beck, or do any Act, Matter, or Thing whereby the said Waters may be drawn off or diminished in Quantity; and if any Person shall divert, alter, or appropriate the said Waters or any Part thereof, or shall do any such Act, Matter, or Thing whereby the said Waters may be drawn off or diminished in Quantity, and shall not immediately on being required so to do by the said Company repair the Injury done by him, so as to restore the said Waters to the State in which they were before such Act as aforesaid, they shall forfeit to the said Company any Sum not exceeding Five Pounds for every Day during which the said Supply of Water shall be diverted or diminished by reason of any Work done or Act performed by or by the authority of such Person in addition to the Damage which the Company may sustain by reason of their Supply of Water being diminished.

Reservation of existing Rights.

XXVIII. Provided nevertheless, and be it enacted, That nothing herein contained shall prevent the Owners and Occupiers for the Time being of the said Estate of the said Sir John Wyldbore Smith from using the Waters of the said Beck, and of the said other Springs and Supplies, for agricultural and domestic Purposes, and from sinking Pits and Wells near the said Beck and the said Springs and Supplies for the Purposes aforesaid and from crossing through and over the said Beck at all times by their Cattle and Carriages, in such Manner and to as great an Extent in all respects as the said Sir John Wyldbore Smith, or such Owners and Occupiers, might have done previously to the passing of this Act, the said Owners and Occupiers not wilfully doing any Act to foul or corrupt the said Waters.

* * * * *

For protection of the Drainage by the River Witham, &c. in the County of Lincoln.

XLVII. And whereas, for the Purpose of supplying Water to the Inhabitants within the Limits of this Act, it is intended to open and break up the Soil, Pavement, or Surface of the Grand Sluice Bridge in Boston, aforesaid, and also of certain Bridges across Maud Foster Drain, and several other Rivers, Drains, Skirths, and Watercourses, and to carry the Line of Pipes for conveying such Water across the said Rivers, Drains, Skirths, and Watercourses, and other Works of Drainage within the Jurisdiction and Control of the General Commissioners for

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

Drainage by the River Witham; and it is necessary to make Provisions for preserving the Drainage of the Fen Lands and Low Grounds draining by the said River Witham, and the Rivers, Drains and Watercourses connected therewith; be it therefore enacted, That in constructing and maintaining the said intended Waterworks where the same shall pass over the said River Witham, or any of the said Rivers, Drains and Watercourses, or other Works of Drainage connected therewith, it shall not be lawful for the said Company to contract or diminish the Area of the Waterways thereof, or to do any Act by which the free Passage and Circulation of the Waters along the said River Witham, or between the Banks thereof, or any of the Rivers, Drains, and Watercourses connected therewith, shall be impeded or obstructed, or the Use or Enjoyment of any existing public or private Right of Drainage or Navigation in any Rivers, Drains, Skirths, or Watercourses within the Limits of the Witham Drainage in any Manner injured or interfered with; and that the said Company shall at all Times be responsible to the said General Commissioners for, and shall be bound to repair and make good, any Damage or Injury that may be done or occasioned to the Drainage of any of the Districts, Fen Lands, and Low Grounds under the Jurisdiction and Control of the said General Commissioners, or any of the Bridges, Sluices, Tunnels, or other Works for protecting or preserving the said Drainage through the Neglect or default of the said Company, or the Effect or Operation of their Works: Provided always, that in constructing the Works for carrying the said Line of Pipes across the said River Witham, or any of the said Rivers, Drains or Watercourses, or other Works of Drainage belonging to or maintained by the said General Commissioners, the same shall be executed in a substantial and proper Manner, to the reasonable Satisfaction of the Engineer or Surveyor of the said General Commissioners; and in case of any Dispute concerning the same the Amount of any Damage, Injury or Compensation shall be ascertained and settled by Reference to some Justice, not being a Proprietor of the said Company, or One of the said General Commissioners, whose Determination shall be final and conclusive; and the Amount of all Expenses, Damages, Loss and Compensation, together with such Costs and Charges as shall be by such Justice allowed, shall be levied and recovered, by Warrant of Distress under his Hand and Seal, against the Goods and Chattels of the said Company.

XLVIII. And be it enacted, That the Company shall at all Times be responsible to the said General Commissioners for any Damage or Injury that may be done to any of the Banks or Forelands, Bridges, Sluices, Tunnels, or other Works of Drainage under the Jurisdiction and Control of the said General Commissioners, arising from or caused by the Works of the Company, or by any Neglect by the Company of necessary

A.D. 1930.

Company
responsible
to the
General
Commis-
sioners for
Damage
occasioned
by their
Works.

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — Repairs, and shall make full Compensation to the said General Commissioners for such Damage or Injury, such Damage and Compensation to be Ascertained, settled, and recovered, in case of Dispute, by Reference to some Justice, as is hereinbefore provided.

Saving
Rights of
the General
Commis-
sioners for
Drainage.

XLIX. And be it enacted, That nothing herein contained shall in any Manner alienate, prejudice, alter, lessen, impede, or interfere with the Exercise of any of the Rights, Interests, Powers, Privileges, or Authorities vested in the General Commissioners for Drainage by the River Witham, or their Officers or Servants, save or except so far as the same Rights, Interests, Powers, Privileges, or Authorities are expressly altered or interfered with by this Act, for the Purpose only of executing the said Undertaking, and the several Works connected therewith or relating thereto.

Waterworks
Company to
indemnify
Boston Gas
Light and
Coke Com-
pany for
any Injury
done to their
Pipes, &c.

L. And be it enacted, That if in carrying into execution any of the Powers by this Act granted any Injury or Damage shall be done or committed to any of the Pipes, Branches, Apparatus, Materials, or Things already or hereafter to be laid down by the Boston Gas Light and Coke Company, for the Purpose of supplying with Gas the said Borough of Boston and the Neighbourhood thereof, or any Part thereof, either by removing or disturbing the Ground in or upon or near to which the same is or are placed, or by the Compression or subsequent settling or lowering of the same at any Time afterwards or otherwise, the said Waterworks Company shall, at their own Expense, Costs and Charges, within Twenty-four Hours next after Notice in Writing given to them by the said Gas Light and Coke Company, or their Clerk, cause such Pipes, Branches, Apparatus, Materials and Things to be well and effectually repaired and amended, and also pay to the said Gas Light and Coke Company the Amount of all Damage or Loss which may accrue from the Escape of Gas by reason of any such Injury or Damage; and in default or neglect thereof it shall be lawful for the said Gas Light and Coke Company and they are hereby authorized and empowered to cause such Pipes, Branches, Apparatus, Materials, and Things so injured or damaged as aforesaid to be effectually repaired, amended, and made good; and the reasonable Costs and Charges attending the same, together with the Amount of all Damage or Loss which may accrue to the said Gas Light and Coke Company from such Escape of Gas as aforesaid, shall be defrayed and paid by the said Waterworks Company or their Treasurer to the said Gas Light and Coke Company, the same having been ascertained and settled, in case of Dispute concerning the same, by some Justice, not being a Proprietor of any Share in either of the said Companies, which Determination shall be final and conclusive; and the Amount of such Expences, Damages, and Loss, together with such Costs and Charges as shall be by such Justice allowed, shall be levied and

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

recovered by Warrant of Distress under his Hand and Seal A.D. 1930.
against the Goods and Chattels of the said Waterworks Company. —

LI. And be it enacted, That the said Waterworks Company shall and they are hereby required to give to the said Gas Light and Coke Company, or their Clerk, at least Twenty-four Hours Notice in Writing before the said Waterworks Company shall dig or sink any Trench or open any Street or Ground for laying down any Main Pipes, under the Powers of this Act, near to such Pipes, Branches, Apparatus, Materials, or things of the said Gas Light and Coke Company, which Notice shall state the Time and Place at which the said Waterworks Company intend to commence Operations, the Direction in which they intend to proceed, and that the said Waterworks Company intend to cross or approach the Pipes, Branches, Apparatus, Materials, and Things of the said Gas Light and Coke Company, or some Part thereof; and in default of such Notice being given the said Waterworks Company shall forfeit for every such Offence any Sum not exceeding Twenty Pounds.

Notice to
be given to
Gas Com-
pany before
opening
Trenches,
&c.

LII. Provided always, and be it enacted, That nothing in this Act contained shall extend or be construed or deemed to extend to extinguish, abridge, interrupt, prejudice, or affect any of the Rights, Interests, Powers, Privileges, or Authorities of the Boston Gas Light and Coke Company under and by virtue of an Act of Parliament passed in the Sixth Year of the Reign of His Majesty King George the Fourth, intituled An Act for lighting with Gas the Borough and Neighbourhood of Boston in the County of Lincoln, or to repeal, annul, or interfere with any of the Provisions thereof, save and except so far as the same Rights, Interests, Powers, Privileges, or Authorities are expressly altered or interfered with by this Act, for the Purpose only of executing the said Undertaking, and the several Works connected therewith or relating thereto.

Saving the
Rights of
the Boston
Gas Light
and Coke
Company.

SECOND SCHEDULE.

PROVISION AS TO THE DISTRIBUTION OF CONSIDERATION MONEY AND DISSOLUTION OF THE COMPANY.

(1) From and after the day of transfer the Company shall continue to exist only for the purpose of receiving and recovering the consideration money payable under the scheduled agreement and of distributing the consideration money and any dividends or other moneys to be distributed by them and for winding up

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — their affairs and carrying into effect the purposes of this Act so far as they relate to the Company and the directors of the Company who are in office at the day of transfer and the survivors or survivor of them shall continue without re-election to hold office as directors and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the provisions of this Schedule relating to the Company. If the number of directors of the Company be reduced by death resignation or otherwise below three before the completion of the winding up the continuing directors shall from time to time choose a shareholder or shareholders of the Company to fill the vacancy or vacancies so caused.

(2) As soon as may be practicable after the day of transfer the directors of the Company shall proceed to wind up the affairs of the Company and shall pay and distribute the net moneys of the Company after defraying the expenses of winding up the Company and any outgoings incidental thereto to and amongst the shareholders of the Company and for that purpose the several persons whose names shall appear in the books of the Company at the day of transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the Company and the receipt in writing of such persons or of their executors administrators or assigns shall be an effectual discharge to the Company and the directors thereof.

(3) In case the directors of the Company are for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or securities issued or who can give an effectual receipt for the same they may pay or deposit such money or securities into or with the High Court under any Act for the time being in force for the relief of trustees and every such payment or deposit shall effectually discharge the Company and the directors thereof from any further liability with respect to such money or securities.

(4) If any money or security is payable or issuable to any holder of shares of the Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company and the directors of the same.

(5) After the day of transfer the Company shall have access at all reasonable times to their respective books documents and accounts for the purpose of making up the accounts of the Company and for all other reasonable purposes in relation to the execution of the provisions of this Act.

THIRD SCHEDULE.

A.D. 1930.

FORM OF MORTGAGE.

BOROUGH OF BOSTON.

By virtue of the Boston Corporation Act 1930 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Boston (hereinafter referred to as "the Corporation") in consideration of the sum of

pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by

(hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of

per centum per annum from the day of
nineteen hundred and until payment of the
principal sum such interest to be paid half-yearly on the
day of and the day of in each

year And it is hereby agreed that the principal sum shall be repaid at the town hall in the said borough [(subject as hereinafter provided) on the day of nineteen hundred and
and or (if not repaid on that date) at any time
thereafter on the expiration of three calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of
nineteen hundred and

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the within-mentioned time for repayment of the within-mentioned principal sum of _____ is hereby extended to the day of _____ nineteen hundred and _____ [and the interest to be paid thereon on and from the _____ day of _____ nineteen hundred and _____ is hereby declared to be at the rate of _____ per centum per annum].

Dated this _____ day of _____ nineteen hundred and _____ and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____ of _____ in consideration of the sum of _____ pounds paid to me by _____ of _____ (hereinafter referred to as "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number _____ of the revenues of the mayor aldermen and burgesses of the borough of Boston bearing date the _____ day of _____] and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this _____ day of _____ nineteen hundred and _____

Stamp

FOURTH SCHEDULE.

Ten
Shillings.
14/7/30

AN AGREEMENT made the 23rd day of June one thousand nine hundred and thirty between THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF BOSTON (hereinafter called "the Corporation") of the one part and THE BOSTON WATERWORKS COMPANY (hereinafter called "the Company") of the other part.

WHEREAS the Company were incorporated under and by virtue of the Boston Waterworks Act 1846 and pursuant to that Act have constructed waterworks and are supplying water within the limits of that Act which comprise the borough of Boston and the adjoining parishes of Skirbeck and Skirbeck Quarter And whereas the Company are also supplying water within certain other parishes in the neighbourhood of the borough of Boston And whereas the Corporation have promoted a Bill under the

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

name or short title of the Boston Corporation Bill (hereinafter referred to as "the Bill") for an Act to empower the Corporation to acquire the undertaking of the Company as defined in the Bill (hereinafter referred to as "the undertaking of the Company") And whereas the Company presented a Petition to the House of Lords praying to be heard in opposition to the Bill but agreed to withdraw their opposition to the Bill upon such agreement being entered into as is hereinafter contained :

A.D. 1930.
—

Now this agreement witnesseth and it is mutually agreed by and between the Corporation and the Company as follows that is to say :—

1. Subject to the provisions of this agreement the Company shall sell and the Corporation shall purchase as a going concern the undertaking of the Company.

2. The consideration for the sale of the undertaking shall be the payment by the Corporation to the Company on the 1st day of April 1931 (hereinafter referred to as "the day of transfer") of the sum of £70,000 in cash.

3. The said purchase shall be completed at the offices of the Corporation and possession of the undertaking of the Company shall be given to the Corporation on the day of transfer and the Company shall execute all deeds and documents and do all things reasonably required by the Corporation for carrying into effect the sale and purchase and for duly transferring to and vesting in the Corporation the undertaking of the Company and for letting the Corporation into possession thereof and giving them the full benefit of this agreement and shall procure the execution of such deeds and documents by all other (if any) necessary parties.

3a. If for any reason other than the wilful default of the Company the purchase shall not have been completed on the day of transfer the Corporation shall pay to the Company interest on the consideration money or such part thereof as remains unpaid at the rate of 5 pounds per centum per annum from the day of transfer to the actual date of payment.

4. Until the day of transfer the Company shall maintain and carry on the undertaking of the Company as heretofore in the ordinary course of business maintaining normal quantities of consumable stores but the Company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any new contract agreement liability or other obligation in respect thereof which shall extend beyond the day of transfer nor vary without the like consent any of the rates rents or charges which were being demanded and taken by the Company on the 17th day of December 1929.

5. Until the day of transfer the Company shall in carrying on the undertaking of the Company in accordance with the last preceding clause in this agreement maintain the assets of the undertaking in a satisfactory condition but shall not incur

[Ch. clxxxv.] *Boston Corporation* [20 & 21 GEO. 5.]
Act, 1930.

A.D. 1930. — any expenditure of a capital or unusual nature nor shall they raise any money by borrowing or by the creation and issue of debenture stock nor increase the salaries and remuneration of the existing staff nor subject to the provisions of Article 4 of this agreement dispose of any of the assets of the undertaking of the Company without the previous consent of the Corporation under the hand of the town clerk.

6. The Company shall be entitled to pay to their shareholders dividends upon their respective holdings from the 6th day of January 1930 up to the day of transfer at the rate of 10 per centum per annum less income tax at the rate of 4s. 6d. in the pound.

7. The Company on the day or dates upon which they forward to the directors notice of any meeting of the board of directors of the Company at which the provision of any new works or any matters involving the policy of the Company are to be discussed shall forward the like notice to the town clerk and thereupon the Corporation may appoint two councillors or aldermen to attend any such board meeting and the Company on being notified by the town clerk shall permit such members to attend any such meeting of the board of directors.

7a—(1) In addition to the consideration for the said sale the Corporation shall on the day of transfer pay to the chairman of the directors of the Company the sum of £2,000 in cash which sum shall be applied as compensation for loss of office to the six persons who were directors of the Company on the 28th day of March 1930 and such sum shall be divided between such persons as they or the majority of them shall determine Provided that if the number of such persons shall be reduced by the death of any one or more of such persons before the day of transfer the said sum of £2,000 payable by the Corporation as aforesaid shall be reduced proportionately.

(2) If for any reason other than the non-completion of the purchase on the day of transfer owing to the wilful default of the Company the said sum of £2,000 or any part thereof (other than so much of the said sum as may not be payable in consequence of the death of any one or more of the said persons) shall not be paid on the day of transfer the Corporation shall pay to the chairman of the directors of the Company on behalf of the person or persons to whom the said sum of £2,000 or part thereof is due interest thereon at the rate of five pounds per centum per annum from the day of transfer to the actual date of payment.

(3) The receipt of the chairman of the said directors for any money payable under this clause shall be a sufficient discharge to the Corporation and the Corporation shall not be bound to see to the application of such money or be answerable or accountable for the loss misapplication or non-application thereof.

[20 & 21 GEO. 5.] *Boston Corporation* [Ch. clxxxv.]
Act, 1930.

8. The officers and servants of the Company to whom the section of the Bill as passed by Parliament of which the marginal note is "Existing officers and servants" shall apply shall be deemed to include Arthur Watson Grocock the clerk and accountant of the Company Thomas Henry Tyson the manager of the Company John Henry Bontoft the collector to the Company George Jessup George Jessup junior G. H. Marratt Harold Read the four turncocks and Sidney Holmes and Alan Paul the two reservoir keepers. A.D. 1930.

9. As from the date of this agreement the Company shall supply or cause to be supplied by their responsible officers to Mr. A. W. White or other the accountant for the time being acting on behalf of the Corporation any information he may reasonably require relating to the undertaking of the Company.

10. This agreement is made subject to the sanction of Parliament and to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration in this agreement or in the Bill to the prejudice of either party either the Corporation or the Company may upon giving notice in writing to the other before the Bill shall be read a third time in the Second House withdraw this agreement from the Bill and in such event or if the Bill shall not be passed this agreement shall be void and of no effect.

In witness whereof the Corporation and the Company have caused their common seals to be hereunto affixed the day and year first above written.

The common seal of the mayor aldermen and
burgesses of the borough of Boston was
hereunto affixed in the presence of

L.S.

R. SALTER Mayor.
EDMUND WAITE Town Clerk.

The common seal of the Boston Waterworks
Company was hereunto affixed in the
presence of

L.S.

ERNEST CLARK
A. O. SCRIVENER } Directors.

A. W. GROCOCK Clerk.

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